VANCOUVER PUBLIC SCHOOLS

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Legal Department

Notice

Updates to the following attached procedures have been approved by Superintendent, Jeff Snell, and are scheduled to be posted online at www.vansd.org

- Procedure 3420, Anaphylaxis Prevention and Response
  - Posted on March 28, 2025

- Procedure 3424, Opioid Related Overdose Reversal
  - Posted on March 28, 2025

- Procedure 3432, Emergencies
  - Posted on March 28 2025

- Procedure 6220, Bid and Proposal Requirements
  - Posted on March 28, 2025

Procedure – Anaphylaxis Prevention and Response

For students with a medically diagnosed life-threatening allergy (anaphylaxis), the district will take appropriate steps for the student's safety, including implementing a health ~~nursing care~~ plan developed by the school nurse. The district will utilize the Guidelines for the Care of Students with Anaphylaxis published by the Office of the Superintendent of Public Instruction.

I. Parent/Guardian Responsibility

Prior to enrolling a student, the parent/guardian will inform the school in writing of the medically diagnosed allergy(ies) and risk of anaphylaxis. School districts will develop a process to identify students at risk for life-threatening allergies and to report this information to the school nurse. Upon receiving the diagnosis, school staff will contact the parent/guardian to develop a health ~~nursing care~~ plan. A ~~nursing care~~health plan will be developed for each student with a medically diagnosed life-threatening allergy.

II. ~~Nursing Care~~Heatlh Plan

A. The school nurse (registered nurse) will develop a written plan that identifies the student's allergies, symptoms of exposure, practical strategies to minimize the risks, and how to respond in an emergency.

B. The principal or designee ~~(school nurse)~~ may arrange for a consultation between ~~with~~ the school nurse and parent/guardian prior to the first day of attendance to develop and discuss the health ~~nursing care~~ plan. The plan will be developed by the school nurse in collaboration with parent/guardian, licensed health care provider (LHP), and appropriate school staff. If the treatment plan includes self-administration of medications, the parent/guardian, student, and staff will comply with Policy and Procedure 3419, Self-Administration of Asthma and Anaphylaxis Medication.

C. Annually and prior to the first day of attendance, the student health file will contain:

1. A current, completed health ~~nursing care~~ plan;

2. A written medical ~~description of the treatment~~ order, signed by a LHP; and

3. An adequate and current supply of auto-injectors or intranasal medication (and other medications if needed). The school will also recommend to the parents/guardians that the student wear a medical alert bracelet at all times. The parents/guardians are responsible for notifying the school if the student's condition changes and for providing the medical treatment order, appropriate auto-injectors or nasal spray and other medications as ordered by the LHP.

D. The district will exclude from school those students who have a medically diagnosed life-threatening allergy and no medication or treatment order presented to the school, to the extent that the district can do so consistent with federal requirements for students with disabilities under the Individuals with Disabilities Act and Section 504 of the Rehabilitation Act of 1973, and pursuant to the following due process requirements:

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1. Written notice to the parents, guardians or persons in loco parentis is delivered in person or by certified mail, or email;

2. Notice of the applicable laws, including a copy of the laws and rules; and

3. The order that the student will be excluded from school immediately and until medications and a medical ~~treatment~~ order are presented.

~~3.~~4. Provide a copy of the procedural safeguards notice, as applicable.

III. Communications Plan and Responsibility of School Staff

After the health ~~nursing care~~ plan is developed, the school principal or a designee will inform appropriate staff regarding the affected student. The school nurse (registered nurse) will train appropriate staff regarding the affected student and the nursing care plan. The plan will be distributed to appropriate staff and placed in appropriate locations in the district (classroom, office, school bus, lunchroom, near playground, etc.). With the permission of parents/guardian and the student, (if appropriate), other students and parents may be given information about anaphylaxis to support the student's safety and control to exposure to allergens.

IV. All School Staff Training

A. Annually, the district will provide training on how to minimize exposure and how to respond to an anaphylaxis emergency. The training will include a review of avoidance strategies, recognition of symptoms, the emergency protocols to respond to an anaphylaxis episode (calling 911/EMS when symptoms of anaphylaxis are first observed) and hands-on training in the use of an auto injector and nasal spray. Training should also include notifications that more than one (1) dose may be necessary in a prolonged anaphylaxis event.

B. Student specific training and additional information will be provided (by the school nurse) to teachers, teacher's assistants, clerical staff, food service workers and bus drivers who will have known contact with a student diagnosed with a known allergen.

V. Student-Specific Training

Annually, before the start of the school year and/or before the student attends school for the first time, the school nurse will provide student-specific training and additional information to teachers, teacher's assistants, clerical staff, food service workers, and bus drivers who will have known contact with a student diagnosed with a known allergen and are implementing the nursing care plan.

VI. Controlling the Exposure to Allergens

A. Controlling the exposure to allergens requires the cooperation of parent~~s~~/guardians, students, the health care community, school employees and the board. The district will inform parent/guardian~~s~~s of the presence of a student with life threatening allergies in their child's classroom and/or school and the measures being taken to protect the affected student. Parent/guardians will be asked to ~~cooperate and~~ limit the allergen in school lunches and snacks or other products. The district will discourage the sharing of food, utensils and containers. The district will take other precautions such as appropriate cleaning of eating surfaces, avoiding the use of party balloons or contact with latex gloves. Additionally, play areas will be specified that are lowest risk for the affected student.

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B. The district will also identify high-risk events and areas for students with life-threatening allergies, such as foods and beverages brought to school for seasonal events, school equipment and curricular materials used by large numbers of students (play-dough, stuffed toys, science projects, etc.) and implement appropriate accommodations.

C. During school-sponsored activities, appropriate supervisors, staff and parents will be made aware of the identity of the student with life-threatening allergies, the allergens, symptoms and treatment. The lead teacher will ensure that the auto-injector is brought on field trips.

VII. Undesignated Epinephrine ~~Autoinjectors~~

A. District prescription and standing order protocol

1. The district will maintain a supply of undesignated epinephrine autoinjectors or nasal spray that will be prescribed in the name of the district by a licensed health professional with the authority to prescribe epinephrine ~~autoinjectors~~. The district prescription is valid for one year only and will need to be renewed prior to the start of each school year. A standing order and prescription form a licensed health care provider may be used for the purposes of maintaining and administering undesignated epinephrine autoinjectors.

2. Each prescription must be accompanied by a standing order for the administration of School supplied epinephrine autoinjectors for potentially life-threatening allergic reactions. The standing order is subject to approval by the nurses' advisory team and prescribing physician. The standing order shall be reviewed annually by the nurses' advisory team and prescribing physician.

3. The standing order protocol should include specific symptoms of anaphylaxis, the dose of medication and directions to summon emergency medical services (EMS 911) upon observance of symptoms of anaphylaxis. Parent/guardian notification will occur as soon as possible after EMS is notified. An evaluation by a health care provider/hospital emergency room is required and a written release back to school is required from a licensed provider.

B. Epinephrine autoinjectors will be stored at each school, at all times. In the event that an autoinjector is used, the school nurse will immediately notify the nursing supervisor and procure another epinephrine autoinjector.

VIII. Autoinjector Supply

The district will obtain epinephrine autoinjectors or nasal spray directly from an appropriate practitioner, pharmacist, medical facility, drug manufacturer or drug wholesaler. All epinephrine ~~autoinjectors~~ will be accompanied by a prescription.

IX. Storage/Maintenance/Expiration/Disposal

School supply of epinephrine ~~autoinjectors~~ will be stored in a designated area (health room, main office or nurses' office). They will be stored in an environment free from extreme cold, heat, or light (near 77 degrees Fahrenheit) per manufacturer's instructions. The designated school nurse for each building will monitor the expiration dates of epinephrine ~~autoinjectors~~. When an epinephrine autoinjector expires the school nurse will follow district procedures for disposal of medication. School staff will also comply with district medication policy and procedures related to safe, secure management of medications.

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X. Administration

A. Epinephrine ~~autoinjectors~~ may be used on all school property, including buildings, playgrounds, school buses, and during field trips. For school-sponsored events and field trips, the school nurse or designated trained school personnel may carry an appropriate supply of school supplied epinephrine. This does not negate the need to carry the supply of epinephrine devices belonging to students with known anaphylaxis.

B. In the event a student without a current prescription on file with the school or a student with undiagnosed anaphylaxis experiences an anaphylactic event, only the school nurse may utilize the school supply of epinephrine to respond under the standing order protocol. If the school nurse is not available, unlicensed school staff should immediately call 911.

C. In the event a student with a current prescription for ~~an~~ epinephrine ~~autoinjector~~ on file at the school experiences an anaphylactic event, the school nurse or designated trained school personnel may use the school supply of epinephrine ~~autoinjectors~~ to respond if the student's supply is not immediately available.

D. The district will maintain all practices regarding prescriptions and self-medication for children with existing epinephrine autoinjector prescriptions and/or a guided anaphylaxis care plan. Parents of students with identified life threatening allergies must continue to provide the school with appropriate medication and treatment orders pursuant to RCW 28A.210.320, Life Threatening Conditions.

XI. Reporting

The school nurse or designated staff member that administer epinephrine must complete a written Report of Epinephrine Administration form within 24 hours. The report includes student name, all observations and physical assessment, other interventions (such as antihistamine administration), the dosage of epinephrine given, the site of injection, time epinephrine was given and time EMS/911 was called. The completed report must be signed by the person who administered epinephrine.

XII. No Liability

If the school employee or school nurse who administers epinephrine by auto injector to a student substantially complies with the student's prescription (that has been prescribed by a licensed health professional within the scope of the professional's prescriptive authority) or a statewide standing order and the district's policy on anaphylaxis prevention and response, the employee, nurse, district, superintendent and board are not liable for any criminal action or civil damages that result from the administration.

APPROVED:

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Jeff Snell, Superintendent
Vancouver Public Schools

Date

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(DRAFT 11-08-24)

Procedure – Opioid Related Overdose Reversal

An opioid overdose requires immediate medical attention. It is essential to initiate emergency medical services for medical assessment and support.

Opioid overdose reversal medication and rescue breathing are evidence-based interventions known to result in positive outcomes for individuals experiencing an opioid related overdose. The district shall utilize the *Opioid ~~Related~~ Overdose Reversal Policy and Training Guidelines for ~~& Training in the~~ Schools ~~Setting~~* published by the Office of the Superintendent of Public Instruction.

I. Opioids and Overdose

A. Opioids are a class of drugs derived from opium poppy or entirely created in a lab. Opioids include morphine, codeine, oxycodone, hydrocodone, hydromorphone, heroin, meperidine, fentanyl, and methadone. There are prescription opioids and opioids that are created and obtained illicitly.

B. An opioid overdose happens when someone has taken too much of an opioid. Synthetic opioids such as Fentanyl are especially dangerous due to its potency and are often found in a wide variety of forms including counterfeit pills and in illicit drugs. ~~can be added to illicit street drugs~~. A person under the influence of opioids may experience ~~non-life-threatening effects such as~~ nausea, vomiting, or sleepiness which are not immediately life threatening. An overdose is life-threatening when a person stops breathing or they experience inconsistent breathing, loss of consciousness, slowed or irregular heartbeat, or severe allergic reaction. ~~A person may also experience life threatening effects that may lead to death, including infrequent or absent breathing, slowed or irregular heartbeat, no response to stimuli, and severe allergic reaction.~~

C. Risk factors for an opioid overdose include:

1. Mixing opioids with other substances including benzodiazepines, stimulants, or alcohol;

2. Using after a break in use due to decreased tolerance;

3. Taking too many opioids;

4. Other health conditions;

5. Previous overdose;

~~5.~~6. Taking medications that were not prescribed for them;

~~6.~~7. Using opioids not from a pharmacy because the strength is unknown; and

~~7.~~8. Using alone (increases risk from dying from an overdose).

~~D. Those who overdose rarely experience sudden breathing cessation. There is usually enough time to intervene before breathing completely stops and death occurs. Opioid overdose reversal medication and rescue breathing are evidence-based intervention outcomes for individuals experiencing an opioid overdose.~~

II. Signs and Symptoms of Opioid High and Opioid Overdose

A. The effects of opioid exposure include: ~~An opioid high presents differently than an opioid overdose.~~

Opioid ~~High~~ Effects not immediately life threatening	Opioid Overdose – life-threatening
Normal skin tone	Pale, clammy skin Blue or purple lips or fingernails for person with light complexion and white or ashy lips and fingernails for person with dark complexion
Breathing appears normal	Infrequent, shallow, or absent breathing Respiratory rate less than 8 breaths per minute
Normal heart rate	Slow or irregular heartbeat
Looks sleepy	Unconscious or unable to wake
Speech slurred or slow	Deep snoring, gurgling, or choking sounds (death rattle)
Responsive to stimuli	Not responsive to stimuli
Pinpoint pupils (with some exceptions)	Pinpoint pupils

III. Opioid Overdose Response

A. Opioid overdose reversal medication and rescue breathing are evidence-based interventions for individuals experiencing an opioid overdose. In the case of an overdose, naloxone should be administered without delay to restore breathing and improve the person's chances of survival.

B. Naloxone is effective only if there are opioids involved in the overdose. Naloxone will not reverse an overdose involving alcohol, benzodiazepines, methamphetamines, or cocaine. The District shall follow the Washington Department of Health's steps for administering naloxone for drug overdose. (https://www.doh.wa.gov/Portals/1/Documents/Pubs/150-126-NaloxoneInstructions.pdf)

C. ~~B. An opioid overdose may occur intentionally or in many cases unintentionally after injection, ingestion, or inhalation of an opioid.~~ Assessing an individual for responsiveness and breathing is critical to a successful outcome for ~~of~~ a person suspected of experiencing an opioid overdose. A few quick ways to determine this are:

1. Shout their name and shake them; or

2. Rub knuckles hard on the breastbone in the middle of the chest or on the upper lip of the individual.

C. ~~C.~~ If the person responds to the stimuli, assume an overdose has not yet occurred but may continue to progress. ~~However,~~ E~~e~~mergency medical services must ~~should~~ be notified. Remain with the individual and monitor ~~continue to assess~~ for responsiveness and continued breathing until help arrives. It is important to monitor the person and try to keep the individual awake and alert. If the person does not respond to hearing their name, being shook, or having knuckles rubbed on their breast bone ~~or upper lip~~, or if they are not breating, assume they may be experiencing an opioid overdose and administer naloxone per standing order and prescription.

D. According to the American Heart Association guidelines in response to suspected overdose, an Automated External Defibrillator (AED) should be brought and used to rule out a shockable rhythm for a victim who is not breathing/not breathing normally.

~~D~~E. ~~An opioid overdose requires immediate medical attention. It is essential to have a trained medical professional assess the condition of a person experiencing an overdose.~~ All schools are expected to activate emergency medical services in a ~~an expected~~ case of a~~n~~ suspected overdose. ~~Naloxone is~~

~~effective only if there are opioids involved in the overdose. Naloxone will not reverse an overdose involving alcohol, benzodiazepines, or cocaine.~~ Washington's Good Samaritan Law provides some protections when calling 911 to save a life, even if drugs are at the scene according to RCW 69.50.315. The victim and person calling 911 cannot be prosecuted for simple possession. ~~The District shall follow the Washington Department of Health's steps for administering naloxone for drug overdose. (https://www.doh.wa.gov/Portals/1/Documents/Pubs/150-126-NaloxoneInstructions.pdf)~~

III. Obtaining and Maintaining Opioid Overdose Medication

A. If a statewide standing order for intranasal or auto-injection intramuscular forms of naloxone is available, the district will obtain and maintain those forms of opioid overdose reversal medication exclusively.

B. The district may seek to obtain opioid overdose reversal medication through donations from manufacturers, non-profit organizations, hospitals, and local health jurisdictions. The district may also purchase opioid overdose reversal medication directly from companies or distributers~~ at discounted pricing~~. The district must maintain written documentation of its good faith effort to obtain opioid overdose reversal medication from these sources.

C. A school administrator or designee at each district school shall ensure that the opioid overdose reversal medication is stored safely and consistently with the manufacture's guidelines. School administrators or designees will also make sure that an adequate inventory of opioid overdose reversal medication is maintained with reasonably projected demands. Medication should be routinely assessed to ensure enough time for reacquiring the medication prior to the expiration date.

D. Opioid overdose reversal medication shall be clearly labeled in an unlocked, easily accessible cabinet in a supervised location. Consider storing opioid overdose reversal medication in the same location as other rescue medications. Schools my store additional doses in unsupervised locations such as Automated External Defibrillator (AED) cabinets for faster access on large campuses or after hours. Naloxone stored in unsupervised locations should be checked at least weekly. Schools are also encouraged to stock additional doses in first aid and sports kits. Expiration dates should be documented on an appropriate log. Additional materials (e.g. instructions for administering opioid overdose reversal medication, barrier masks, gloves, etc.) associated with responding to an individual with a suspected opioid overdose can be stored with the medication.

IV. Training

A. The district will ensure each school has at least one staff member who can distribute or administer opioid overdose reversal medication. Any staff member may be designated and trained upon approval by a principal or school nurse. Staff certified in first aid and CPR may be prioritized for designation and training for administration of opioid overdose reversal medication. If opioid overdose reversal medication is stocked in first aid kits or sports kits, staff members in possession of these kits at off-site events should be designated and trained to distribute and administer the medication.

B. ~~A.~~ A licensed registered professional nurse who is employed or contracted by the district will, annually, train the designated trained responders on the administration of the opioid overdose reversal medication consistent with OSPI's guidelines and this policy/procedure. Training may take place through a variety of platforms, including online or in- person~~a more conventional classroom setting~~. Training may occur in small groups or conducted one-on-one and may be offered by nonprofit organizations, higher education institutions, or local public health agencies.

C. Training for designated personnel will include:

1. District policy and procedure;

2. What are opioids;

3. What is an opioid overdose;

4. Other types of overdoses;

5. Signs and symptoms of an overdose;

6. Actions to take when a suspected opioid overdose occurs;

7. Naloxone access points in the school;

8. Reporting requirements;

9. Skill practice; and

10. Good Samaritan law.

B. Each school will maintain a log of all designated trained responders. The log will include a list of all persons who are designated trained responders, a list of their trainings with the date and location of the training and the name of the trainer.

V. Student Possession of Opioid Overdose Reversal Medication – "Self Carry"

~~C~~A. Students~~Individuals~~ who have been directly prescribed opioid overdose reversal medication according to RCW 69.41.095 or obtained over-the-counter opioid overdose reversal medications may lawfully possess and administer opioid overdose reversal medication, based on their personal prescription. ~~However, such "self-carrying" individuals must either show proof of training as verified by a licensed registered professional nurse employed or contracted by the district or participate in district training.~~ These self-carrying individuals do not count toward the designated trained responders at each school.

B. The district will not discipline students solely for possession or good faith administration of naloxone. Naloxone will not be confiscated from students who are found to have it in their possession at school and school-sponsored events.

C. The district will make information available to students about behavioral health supports and the district's policy and procedure for opioid overdose response. The importance of summoning adult help and emergency services for any suspected overdose will be emphasized.

VI. Post Incident Follow Up

The district will provide supports to students and staff after a suspected overdose incident. Supports may include critical incident stress debriefing, flight team, postvention, or other support and prevention measures.

V. Liability

The district's and practitioner's liability is limited as described in RCW 69.41.095.

APPROVED:

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Jeff Snell, Superintendent
Vancouver Public Schools

Date

Procedure – Emergencies

I. Overview

A. The District and its schools will develop comprehensive all-hazard emergency operations plans that address prevention, mitigation, preparedness, response, and recovery strategies. Plans will be revisited annually and revised if necessary.

B. In the event of an emergency:

1. The report of an emergency will be directed to the superintendent's office;

2. If the nature of the emergency calls for immediate action on the part of a principal, the principal will take necessary action and report such action to the superintendent's office;

3. The superintendent's office will contact those departments and/or schools who must assist in the emergency action, and

4. When appropriate the superintendent's office will contact the local police department and the county department of emergency services.

II. Drills

A. Drills are essential and are held to familiarize the occupants of a building with the signals, process, and procedures so that in case of emergency there will be less hesitation or confusion. Each school in the District will hold at least one safety-related drill per month to teach students and staff the basic functional responses to potential threats and hazards: evacuation, lockdown, shelter-in-place, and drop-cover-hold on. All persons in the building must take part in the drills. District schools may hold unplanned drills.

B. Schools will identify those drills that they intend to practice more than one time. The basic functional responses are adaptable and can be applied to a variety of situations. In responding to real threats or hazards, more than one response may be required. (An earthquake, for example, may require both a drop-cover-hold-on response followed by an evacuation.)

C. The sounding of an alarm for the purpose of a drill is an authority possessed solely by the principal or authorized designee. The principal will designate an alternate to act in the principal's absence. In the event of a real emergency, the person witnessing the situation may sound the alarm; the school office must be immediately notified of the emergency.

D. Each school in the District will document the date, time, and type of drill, and maintain the documentation in the school office. In addition to required monthly drills, schools are encouraged to conduct one tabletop exercise, one functional exercise, and two full-scale exercises within a four-year period.

E. Each school in the District is distinct. It is incumbent upon the principal of each school to develop, adapt, and modify safety planning requirements, processes, and drills to the particular needs of the school. The school principal will ensure that all staff and students are trained and prepared for a wide range of potential emergency situations. Principals are encouraged to use a variety of options and opportunities to facilitate the training process. Each school will develop plans to teach students crisis

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response strategies and ensure that adults, including First Responders, are trained to follow established protocols.

F. The District is committed to supporting the needs of all students in the event of an emergency, including those with special needs and disabilities, and those whose first language is other than English. School emergency planning will consider the needs of these students throughout the four phases of crisis management and work to identify students' needs for accommodations and modifications related to safety planning.

III. Basic Responses and Drills

A. Evacuation

1. In an emergency, it may be necessary to evacuate students from a school. An evacuation is a functional response taken to move students and staff from one place to another quickly. The primary objective of an evacuation is to ensure that all staff, students, and visitors can quickly move away from the threat. Evacuation examples include responding to fire, bomb threat, after an earthquake, or internal gas leak.

2. The principal or designee will prepare an evacuation plan for their school and carry out a practical evacuation exercise at least once a year. The needs for each school will be different, no common plan can be used to prepare all schools. Principals are encouraged to collaborate with local fire and law enforcement when making plans to evacuate your school.

3. In preparing for possible evacuations, principals should identify three types of evacuation locations:

   a) On-site evacuation location within the school (auditorium, gym, cafeteria, etc.);

   b) On-site evacuation location outside of the building (playground, football field, parking lot, etc.);

   c) Off-site evacuation location to a separate facility, as well as a possible alternate location;

4. When planning for an evacuation, principals will consider:

   a) The safe movement of students, staff, and visitors to designated assembly areas;

   b) The evacuation of students who are not with a teacher or staff member;

   c) Alternate evacuation routes and assembly locations in the event that the primary route or assembly area is unsafe;

   d) The evacuation of individuals with disabilities and others with access and functional needs, such as language, transportation, or medical needs.

5. The principal will instruct employees including teachers, secretaries, cooks, custodians, aides, and bus drivers as to their respective responsibilities in an evacuation exercise.

6. The principal will be responsible for organizing and conducting such emergency evacuation drills as are necessary and will objectively evaluate the activity following each such drill. In the absence of the principal, employees should be able to conduct all aspects of the evacuation procedure.

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B. Lockdown/ Secure ~~Lockout~~

1. A Lockdown is a functional response taken to secure interior portions of school buildings and grounds during incidents that pose an immediate threat of violence in or around the school. The primary objective is to ensure all school students, staff, and visitors are quickly secured away from the immediate danger, such as armed intruders, violent behaviors, suspicious trespassers, on-campus shootings, bomb threat, sniper, or nearby police activity. Lockdown drills may not include live simulations of or reenactments of active shooter scenarios that are not trauma-informed and age and developmentally appropriate[TDR1].

~~2. A Full Lockdown is initiated when hallways need to be cleared. Movement throughout building is stopped until an all-clear signal is given.~~

~~3. A Modified Lockdown is typically used when events in the vicinity of the school may pose a threat. Movement within the building may continue as normal or may be adapted based on the situation.~~

2~~4~~. A secure ~~Lockout~~ is initiated to secure school buildings and grounds during incidents that pose a threat or hazard outside of the school building. Secure~~Lockout~~ uses the security of the physical facility to act as protection; it brings students inside the school when that is deemed safer than being outside. Movement within the building may continue as normal or may be adapted based on the situation.

C. Shelter ~~in-Place / Sheltering~~

1. Shelter involves taking immediate action to move students, staff, and visitors indoors quickly when it is safer inside the building than outside. This may be due to severe weather, chemical, radiological, or biological contaminants released into the environment. Shelter may involve isolating the inside environment from the outside by taking shelter where you are, or may require moving individuals to rooms without windows or to designated weather shelters within the building. Shelter may last for an extended period of time.~~Shelter-in-place means to take immediate shelter where you are and isolate your inside environment from the outside environment. Generally, shelter-in-place lasts for just a few hours. Shelter-in-place is initiated because it is safer inside the building or a room than outside. It is used to protect students and staff from chemical, radiological, or biological contaminants that have been released into the environment.~~

~~2. Sheltering is similar to shelter-in-place, in that it is initiated because it is safer inside the building than outside. When sheltering, action is taken to move students, staff, and visitors indoors quickly. Sheltering may last for an *extended period* of time. For severe weather, depending on the type and/or threat level, staff may need to move the affected individuals to rooms without windows or to rooms that can be sealed as a weather shelter.~~

2~~3~~. In planning for a ~~both~~ shelter ~~in-place and for sheltering~~, the school planning team will consider:

a) Supplies needed to seal a room against hazardous materials;

b) Supplies needed to provide for the basic needs of students and staff (e.g., water; sanitary needs);

c) The needs of individuals with disabilities and others who have access or functional needs, such as students needing regular administration of medication, durable medical equipment, or personal assistant services; and

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d) The possible need for and integration of "safe rooms" for protection against extreme weather hazards in order to provide immediate life-safety protection when evacuation is not an option.

IV. Preparation and Response to Specific Emergencies

A. Earthquake – Drop – Cover – Hold-on

1. The threat of an earthquake in Washington is ever-present. The standard functional response to an earthquake is: Drop – Cover – Hold-on. When an earthquake occurs, the danger can persist for some time.

2. The principal and building staff will be responsible for conducting an annual inspection of the building early in the school year for the purpose of identifying potential hazards in the event of an earthquake, e.g., securing all bookcases to wall to prevent collapse. Those hazards that cannot be corrected by building level personnel will be corrected by District maintenance personnel as soon as resources permit.

3. Each school principal in consultation with staff is required to prepare a plan and conduct an emergency drop-cover-hold-on earthquake drill annually. Building staff are encouraged to contact the District office and the county emergency service department for technical assistance.

4. Information to Families

   a) Families will be advised that if there is an earthquake while children are on their way to school, they should "duck and cover away from power lines, buildings, and trees." Once the earthquake has stopped, they should proceed to school. If the quake occurs on their way home, after protecting themselves until the quake stops, they should proceed to their home.

   b) Families will also be advised not to remove a child from the school grounds unless they have first checked with school officials, as building employees might think the student is missing and needs help.

   c) Families will further be advised to avoid calling the school, as school staff will need to use the phones, if the phones are functioning. Staff will notify parents of injured children first. Schools will train staff to help injured children, as possible, until other medical assistance arrives.

5. Following an earthquake drill or actual event, staff members will account for all students and staff before re-entry. The principal must determine, on the basis of thorough inspection of both structures and utility conduits, that the facility is safe. No students or staff will be dismissed until procedures have been approved by the superintendent's office if district-wide communications are in operation.

6. Instructions - During Drill or Earthquake

   a) In classrooms: All persons, including the teacher, other staff, and students will get under a desk or table, face away from windows, face away from bookshelves, face away from heavy objects that may fall, crouch on knees close to ground, place head close to knees, cover side of head with elbows and clasp hands firmly behind neck, close eyes tightly, and remain in place until instructed otherwise or until the "all clear" signal is given.

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b) In gymnasiums or assembly areas: all persons will exit such facilities as expeditiously as possible and move to designated areas.

c) On stairways: all persons will move to the interior wall and "duck and cover." If the stairway is exterior to the building, all persons should evacuate to designated areas.

d) If outdoors: all persons will move to designated areas, as far away as possible from buildings, poles, wires, and other elevated objects. All persons will lie down or crouch low to the ground, covering their heads. All persons should be aware of encroaching danger that may demand further movement.

7. After the Shaking Stops

a) Expect aftershocks.

b) The principal and custodian will inspect facilities as soon as it appears safe to do so, and before instructing employees and students to evacuate. Classes will be evacuated through exits to a safe area. Students must move away from buildings and remain there until given further instructions. One or more responsible employees or students may be posted to prevent re-entry.

c) Following the evacuation, the principal will:

i. Check for injuries among students and staff (do not attempt to move seriously injured persons unless they are in immediate danger of further injury);

ii. Check for fires or fire hazards;

iii. Check utility lines and appliances for damage. If gas leaks exist, shut off the main gas valves and shut off electrical power if there is damage to the wiring (do not use matches, lighters, or open flame appliances until you are sure no gas leaks exist, and do not operate electrical switches or appliances if gas leaks are suspected);

iv. Instruct students not to touch power lines or objects touched by the wires (all wires should be treated as live);

v. Clean up spilled medicines, drugs, chemicals, and other potentially harmful materials immediately;

vi. Do not eat or drink anything from open containers near shattered glass (liquids may be strained through a clean handkerchief or cloth if danger of glass contamination exists);

vii. Check the chimney over its entire length for cracks and damage, particularly in the attic and at the roof line (unnoticed damage could lead to a fire);

viii. Check closets and storage shelf areas (open closet and cupboard doors carefully and watch for objects falling from shelves);

ix. Keep the streets clear for emergency vehicles;

x. Be prepared for "aftershocks;"

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xi. Respond to requests for help from police, fire department and civil defense, but do not go into damaged areas unless your help has been requested; and

xii. Plan for student/staff needs during the time that may elapse before assistance arrives (e.g. four to eight hours).

8. The four basic functional responses are adaptable and can be applied to a variety of situations. Some threats or hazards may require the use of more than one basic functional response.

B. Fire

1. Fire drills are evacuation drills held to familiarize the occupants of a building with the signals, evacuation routine, and exits so that in case of a fire emergency there will be less hesitation or confusion in leaving the building. These drills are for the safety of all persons involved, and each person must realize that the success of the drill is dependent upon their actions and cooperation. Therefore:

   a) All persons in the building must take part in the fire drill;

   b) Every fire alarm should be considered as a warning of an actual fire;

   c) An accidental or otherwise unplanned fire alarm will be considered a real event and not counted as a drill.

2. Instructions will be given to all students within ten (10) days of the beginning of school. It is particularly important that kindergarten children, representing the one large group of children new to the schools, be given instructions in fire evacuation drill procedures for the building.

C. Pandemic/Epidemic

1. If anyone within the school is discovered or suspected to have a communicable disease that may result in a pandemic/epidemic [TDR2]that person will be immediately quarantined pending further medical examination. Local health officials will be notified immediately.

2. Any student or staff member found to be infected with a communicable disease that bears risk of pandemic/epidemic will not be allowed to attend school until medical clearance is provided by the individual's primary care physician or other medical personnel indicating that the risk of that individual transmitting the disease no longer exists.

3. In the event of prolonged school closings and/or extended absences by employees or students as the result of a pandemic (or other catastrophes), the superintendent or designee will develop a pandemic/epidemic emergency plan that includes at a minimum:

   a) The chain of command for the emergency plan, and the individuals responsible for specific duties such as quarantine;

   b) The specific steps the district will take to mitigate the spread of the disease;

   c) The process for identifying sick students;

   d) The transportation plan for sick students;

   e) Disease containment measures for the district, including possible required use of personal protective equipment and of social distancing;

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f) A continuing education plan for students, such as a plan for remote learning including but not limited to teaching via the internet, providing students with learning packets, assignments via mail, the school district's web resources, etc.;

g) Procedures for dealing with student online safety and privacy;

h) A continuity of operations plan (COOP) for central office functions including employee leave, pay, and benefits during a pandemic; and

i) An ongoing communication plan for staff, students, and families.

D. Bomb Threats

1. Most bomb threat messages are very brief. When possible, every effort will be made to obtain detailed information from the caller such as: exact location of the bomb, time set for detonation, description of the bomb, and type of explosive used. Details such as: time of call, exact words used, sex, estimated age, identifiable accent, voice description of caller and identifiable background noise should also be noted.

2. Evacuation Decision. The principal will notify the District office immediately. The principal will be ready to provide specific information regarding the "threatening call" and indicate if the building(s) will be evacuated and/or searched.

3. The decision of whether or not to evacuate and the manner of evacuation depends on the circumstances of each call. Every call will be handled individually and evaluated separately. If there is doubt as to what action to take, the safety of students and staff must be paramount.

4. If the principal determines the threat is a hoax**,** the District office will be contacted [TDR3]and the principal will conduct a quiet search of the building. No classes will be dismissed. A written report will be submitted to the superintendent.

5. If the principal determines that the message is a dangerous threat, law enforcement officers and the District office will be contacted. Immediate evacuation of the facility will be initiated as delineated in the site-specific comprehensive safety plan. Evacuation procedures will be modified as needed to ensure the safest possible routes are identified and followed.

6. Students and employees evacuated from the area will move to a minimum safe distance as determined by law enforcement personnel. Teaching staff will remain with their classes until such time as the danger of explosion has passed. Search procedures will be conducted under the direction of law enforcement officers. A written report will be submitted to the superintendent.

7. Those evacuated from the area will move to a minimum of 300 feet from the point of possible explosion. Power, gas, and fuel lines leading to a danger area must be shut off as soon as practical. All flammable liquids and materials must be removed from the surrounding area as well as any portable materials of value.

D. Searches, What to Look for and Disposition of Suspected Bombs

1. Search Without Evacuation

If the preliminary decision is to search the building without evacuating the students, the principal will enlist the voluntary aid of the staff to conduct a cursory search of the building. Particular attention will be paid to those areas that are accessible to the public, such as hallways,

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stairways and stairwells, restrooms, unlocked lockers, unlocked and unused classrooms, closets, and the like. A search must also be made on the outside of the building on low window ledges, window wells, and the base of all outside walls.

2. Search with Evacuation

If the decision is to evacuate employees and students, the principal will have the school team conduct a more thorough search of the entire building. When a threat appears to be "dangerous," the principal will enlist the aid of the local police and fire department in conducting the search. All searchers will vacate the building for the period of time when the alleged bomb is to detonate. After the search has been made and the danger period is over, the students may then return to their classrooms for resumption of normal activities.

3. Search with Evacuation during Valid Bomb Threats

When the bomb threat is judged to be valid, the building must be cleared immediately of all personnel so that the police can assume the responsibility of conducting the search. An employee will be stationed at each entrance to prevent unauthorized persons from returning to the building until the area is declared safe.

4. What to Look for in a Search

All unidentified packages found during bomb searches must be considered dangerous and left untouched, to be examined and identified by a qualified bomb expert. Bombs come in many shapes and sizes. Some are disguised, while others may be as crude as sticks of dynamite held together with twine or tape. One must be suspicious of any package that cannot be identified. Example: a brown paper package found ticking in an unlocked locker should always be considered dangerous.

5. Disposition of Suspected Bombs

In the event of the discovery of a suspected bomb, the following steps will be taken:

a) Do not touch or attempt to move the package in any manner;

b) Avoid moving any article or articles that seem to be connected with the bomb in any way that could be a triggering mechanism. Bombs have been set off by turning on a light switch or lifting a telephone receiver;

c) Clear the danger area of all occupants; and

d) Assign staff at entrances to prevent others from entering.

V. Additional Emergency and Drill Planning Considerations

A. Communications

1. The delivery of timely and accurate information before, during, and after an incident is a critical component of crisis and emergency management. Ensuring that students, staff members, parents, local response agencies, the media, and the community have information is the joint responsibility of the school and the District's Communications Office.

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2. Planning for communication and coordination will consider both internal communication and external communication with stakeholders during emergencies and disasters. Planning will also consider the communication of emergency protocols before an emergency and communication after an emergency.

3. If possible, District and school communications system will work to integrate into the local disaster and response law enforcement communication networks (e.g., fire department and law enforcement staff). The goal of integrated communications is to:

   a) Ensure relevant staff members can operate communications equipment;

   b) Communicate with students, families, and the broader community before, during, and after an emergency;

   c) Account for technology barriers faced by students, staff, parents, and guardians;

   d) Effectively address language access barriers faced by students, staff, parents, and guardians;

   e) Allow the communications office to respond in a timely manner to media inquiries;

   f) Communicate to the community; and

   g) Ensure effective communication with individuals with disabilities and others with access and functional needs (e.g., coordinating with First Responders and local emergency managers to provide sign language interpreters for use during press conferences, publishing only accessible documents, ensuring information on websites is accessible).

B. Accounting for All Persons

The planning team will consider the following when developing plans to account for all persons, including students, staff, and visitors:

1. Who is in attendance at the school site;

2. Who is in attendance at the assembly area;

3. Actions to be taken when a student, staff member, or guest cannot be located;

4. The process for reporting to the assembly supervisor; and

5. How and when students will be dismissed or released.

C. Reunification and Student Release

1. Planning how students will be reunited with their families or guardians is a critical component of emergency planning. Reunification is part of the Incident Command System. A comprehensive emergency plan will include procedures to accomplish the main priority of safety planning, which is to ensure the safety of the students to every extent possible.

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2. There are a wide variety of emergency situations that might require student/parent reunification. For example, reunification may be needed if the school is evacuated or closed as a result of a hazardous materials transportation accident, fire, natural gas leak, flooding, earthquake, tsunami, school violence, bomb threat, terrorist attack or other local hazard.

3. As feasible, the planning team will consider the following when developing goals, objectives, and courses of action:

   a) The location of the reunification site;

   b) The methods used to inform families and guardians about the reunification process in advance;

   c) Verification that an adult is authorized to take custody of a student;

   d) The check-in process between the authorized adult and student at the reunion areas;

   e) Assurances that students do not leave on their own;

   f) Privacy protection of students and parents from the media;

   g) Methods to reduce confusion during the reunification process;

   h) Frequent updates for families;

   i) Recognition of technology barriers faced by students, staff, parents, and guardians; and

   j) Effective resources to address language access barriers faced by students, staff, parents, and guardians.

   k) Effective resources to assist families and students with disabilities and others with access and functional needs, such as language, transportation, or medical needs.

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APPROVED:

_____ _____

~~Kathy Everidge, Interim~~Jeff Snell, Superintendent Date
Vancouver Public Schools

Procedure – Bid and Proposal Requirements

I. Informal Competitive Bidding

For purchases of goods or services, other than public works, that fall within the district's range for informal bidding, the following process will be used.

1. The district will reach out to various sources to obtain quotations for the goods or services to be purchased.

2. The district will get quotations from no less than three different sources.

3. If there are not three sources available, the district will record the attempts to contact all available sources and document the limited number of sources.

4. Quotations shall be documented and be available for the public to review following the awarding of the contract.

II. Formal Competitive Bidding Process

The following procedures will be in effect for purchasing and public works through the bidding or request for proposal process:

1. The district will prepare clear and definite plans or specifications for the goods or services to be purchased.

2. The district will provide notice of the call for formal bids by publication in at least one newspaper of general circulation in the district once a week for two consecutive weeks.

    a) The notice will direct potential bidders to full bid requirements.

    b) The notice will provide notice of how sealed bids are to be received.

    c) The notice will also include information about the date, time, and place where bids will be opened.

3. The district will publicly open and read formal bids on the date, time, and place named in the notice and then will file the bids for public inspection. Any interested member of the public may attend the bid opening. It will be the bidder's sole responsibility to see that the district receives his/her bid prior to the time set for opening of bids. The district will return any bid received after the time set for opening the bids to the bidder unopened and without consideration. The district will accept proposals in the place named and no later than the date and time named in the notice.

4. Formal bid or proposal tabulations may be presented at a meeting of the board for study purposes.

5. The board will award a formal contract on the basis of staff recommendations.

6. Specifications using brand names and manufacturers' catalog numbers are for identifying and establishing a quality standard. The board may consider bids or proposals on equal items providing the bidder or proposer specifies brand and model and furnishes descriptive literature. The board

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will condition its acceptance of alternative "equal" items upon its inspection and testing after receipt. If the board does not find the items to be equal, the board will return the items at the seller's expense and cancel the contract.

7. The district will reserve the right to reject any or all bids or proposals, waive any formalities, and/or irregularities, and cancel the solicitation, if a reason exists.

8. On construction projects, the bidder will include a notarized statement agreeing to comply with prevailing wage and affirmative action requirements. The bidder will also provide payment and performance bonds.

9. For public works projects estimated to cost $350,000 or less, the superintendent or designee may solicit bids by telephone, electronic or written quotations from contractors on the appropriate small works roster. The district will not break a project into units or phases in order to come within the scope of the small works roster process or limited public works process. Each year, the district will publish a notice of opportunity regarding the small works roster in at least one newspaper of general circulation in the district and then revise the small works roster accordingly. The district will also add responsible contractors to the small works roster any time a contractor submits a written request and necessary records. The application form shall be designed to collect such information as (l) name of contractor, (2) state of Washington contractor's license number, (3) bonding verification, (4) liability insurance coverage, (5) related contracts completed, and (6) references (bond and clients). Contractors desiring to be placed on or remain on the small works roster are required to keep current records of applicable licenses, certifications, registrations, bonding, insurance, or other appropriate matters on file with the district.

III. Small Works Process

A. For public works contracts that are under $350,000 exclusive of state sales tax, the district may utilize a small works roster for the project. The use of a small works roster for eligible projects is optional.

B. If the district establishes a small works roster, the district will require contractors wishing to be placed on the roster to indicate if they are women, minority, or veteran-owned, or meet statutory definitions of a small business. The district will either create its own small works roster or it may, through interlocal agreements, use small works rosters created by another district or governmental entity.

C. All solicitation for bids or direct contracts shall include a scope of work that includes the nature of the work as well as materials and equipment to be furnished. It is not necessary to have detailed plans and specifications.

D. For any work being done through a small works roster, the district will secure written or electronic quotations to ensure that a competitive price is obtained. The district will award the contract to the lowest responsible and responsive bidder. For small works contracts under $150,000 not including sales taxes, the district may directly contract with a contractor meeting the statutory definition of a small business as follows:

1. If the district's small works roster has six or more small businesses, the district must rotate through the businesses on the roster and must utilize different contractors for different projects.

2. If there are five or fewer small businesses on the roster, the district may choose to directly contract with any of the businesses.

3. In all cases, the district must contact any small, minority, women, or veteran-owned businesses on the roster when using this method.

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E. If the contract is under $5,000, there is no requirement for retainage or performance bonds. For any other small works process, the district may waive or reduce the retention requirements by assuming the liability for any non-payment of labors, mechanics, subcontractors, material persons, suppliers, taxes and any penalties relating to these.

IV. Purchasing and Public Works Awards

A. The contract for the work or purchase shall be awarded to the lowest responsible bidder as described in RCW 39.26.160(2), but the board may by resolution reject any and all bids and make further calls for bids in the same manner as the original call. In determining whether the bidder is a responsible bidder under RCW 39.26.160(2), the district must consider the following elements:

1. The ability, capacity, and skill of the bidder to perform the contract or provide the service required;

2. The character, integrity, reputation, judgment, experience, and efficiency of the bidder;

3. Whether the bidder can perform the contract within the time specified;

4. The quality of performance of previous contracts or services;

5. The previous and existing compliance by the bidder with laws relating to the contract or services;

6. Whether, within the three-year period immediately preceding the date of the bid solicitation, the bidder has been determined by a final and binding citation and notice of assessment issued by the Department of Labor and Industries or through a civil judgment entered by a court of limited or general jurisdiction to have willfully violated any provision of chapter 49.46, 49.48, or 49.52 RCW, as defined in RCW 49.48.082. Before awarded a contract, a bidder shall submit to the district a signed statement in accordance with RCW 9A.72.085, verifying under penalty of perjury that the bidder meets the responsible bidder criteria requirement of this subsection of RCW; and

7. The district may secure such other information as may have bearing on the decision to award the contract.

B. Before award of a public works contract, a bidder must meet the following responsibility criteria to be a responsible bidder and qualified for award of a public works project. The bidder must:

1. At the time of bid submittal, have a certificate of registration in compliance with chapter 18.27 RCW;

2. Have a current state unified business identifier number;

3. If applicable, have industrial insurance coverage for the bidder's employees working in Washington as required in Title 51 RCW; an employment security department number, as required in Title 50 RCW; and a state excise tax registration number, as required in Title 82 RCW;

4. Not be disqualified from bidding on any public works contract under RCW 39.06.010 or 39.12.065(3);

5. If bidding on a public works project subject to the apprenticeship utilization requirements in RCW 39.04.320, not have been found out of compliance by the Washington State

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Apprenticeship and Training Council for working apprentices out of ratio, without appropriate supervision, or outside their approved work processes, as outlined in their standards of apprenticeship under chapter 49.04 RCW for the one-year period immediately preceding the date of the bid solicitation;

6. Until December 31, 2013, not have violated RCW 39.04.370 more than one time as determined by the Department of Labor and Industries; and

7. Within the three-year period immediately preceding the date of the bid solicitation, not have been determined by a final and binding citation and notice of assessment issued by the Department of Labor and Industries or through a civil judgment entered by a court of limited or general jurisdiction to have willfully violated, as defined in RCW 49.48.082, any provision of chapter 49.46, 49.48, or 49.52 RCW (before award of a contract, a bidder shall submit to the district a signed statement in accordance with RCW 9A.72.085 verifying under penalty of perjury that the bidder is in compliance with the responsible bidder criteria requirement of this subsection).

C. For any public works contract, the district shall retain a portion of the amount paid to the contractor, based on the following guidelines:

1. For any contract awarded using the small works roster procedure that is valued under $5,000, the district may waive retainage.

2. For any contract under $150,000, the district may retain ten percent (10%) of the contract in lieu of a payment and performance bond.

3. For any other contract, the district will retain five percent (5%) of the contract until such time as the project has been accepted as complete and all liens released.

4. The contractor may submit a bond to cover amounts that would otherwise be retained by the district.

5. Amounts retained by the district will either:

a) Be held in a fund by the district;

b) Be deposited in an interest-bearing account for the contractor; or

c) Be deposited in an escrow account for the investment in bonds and securities as identified by the contractor.

D. In addition to the bidder responsibility criteria, the district may adopt relevant supplemental criteria in accordance with RCW 39.04.350(3) for determining bidder responsibility, applicable to a particular project with which the bidder must meet.

E. Formal written contracts will be prepared for all major construction and repair projects. After a majority of the board votes to approve a contract, the board president/chair and secretary sign the contract on behalf of the board and record the action in the minutes. All contracts will provide that, in the event that the district files suit to enforce the terms of the contract, the venue will be the county where the district is located. All contracts will also provide that if the district is successful in the suit, the court may order reimbursement of the district's attorney fees and court costs, as the court deems reasonable. Any contract for services with an entity or individual other than an employee of the district shall include a provision requiring the contractor to prohibit any of its employees who has pled guilty to or been convicted of any felony crime specified under RCW 28A.400.322 and who would have contact with children at a public school during the course of his

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or her employment from working at a public school. The contract shall also contain a provision that any failure to comply with this section shall be grounds for the district immediately terminating the contract.

F. When purchases are made with Federal funds, the district will follow these additional guidelines and procedures.

1. The district will, to the greatest extent practicable, ensure that goods, products, or materials are produced in the United States (2 CFR 200.322).

2. When bids or competitive solicitation is required, the district will ensure that the requirements are not written in such a way as to prevent competition, such as specifying a name brand of item (2 CFR 200.319).

3. The district will ensure that there are enough qualified sources to ensure maximum open and free competition, and that potential bidders are not unjustly precluded from bidding (2 CFR 200.319).

4. All contracts shall include the following provisions in the contract language, as applicable (2 CFR Appendix II to Part 200):

a) It must address remedies for instances where contractor violate the terms of the contract.

b) If in excess of $10,000, it must include language addressing termination for cause.

c) It must include an Equal Employment Opportunity clause.

d) If the contract is for a public work project, language that the Davis-Bacon Act will be followed, mandating that laborers and mechanics shall be paid at the prevailing wage rate.

e) If the contract is in excess of $100,000, language must be included for overtime payments for laborers and mechanics who work in excess of 40 hours per week, and that they will not be required to work in unsanitary, hazardous, or dangerous conditions.

f) If the contract is in excess of $150,000, it must include language that requires adherence to the standards of the Clean Air Act and the Federal Water Pollution Control Act.

g) That the contractor, and any subcontractors, are not suspended or debarred from receiving Federal funding.

5. If the district is using Federal funds for a construction or public works project, the district will ensure the contractor pays prevailing wages pursuant to the Davis-Bacon Act (40 USC 3141 *et seq.*, 29 CFR 5.5). This includes receiving and retaining certified payroll records from the contractor and any subcontractor(s) on the project.

G. When procuring food for all child nutrition-related programs, the district will follow these additional guidelines.

1. Purchases of food should include, to the maximum extent possible, items that meet the requirements of being domestically grown or substantially produced in the United States. Substantially produced means over 51% of the processed food comes from products produced in the United States.

2. The district may include language providing for a preference for unprocessed food purchased for child nutrition program to be grown locally.

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a) "Locally" shall include "Washington grown" in accordance with RCW 15.64.060.

b) "Unprocessed" means the food that is delivered to the district retains its inherent character, as defined in 7 CFR 210.22(g)(2), 7 CFR 215.14a(e), 7 CFR 220.16(f)(2), 7 CFR 225.17(e)(2), and 7 CFR 226.22(n)(2), as applicable to the appropriate program.

c) Such language preference may include a provision to award contracts to companies that are not the lowest responsive, responsible bidder in an effort to meet these provisions.

H. To the extent it is practicable to do so, the district will ensure that materials purchases of supplies made with Federal funds contain the highest levels of recovered materials possible, under the Solid Waste Disposal Act.

~~Procedures for Purchasing and public works through the Bidding, Request for Proposal or Request for Quotation Process~~

~~A. Formal bids (over One Hundred Thousand Dollars ($100,000.00) for public works and over Seventy-Five Thousand Dollars ($75,000.00) for furniture, equipment and supplies) will be opened at the time and place stated in the official advertisement for bids and any interested member of the public may attend the bid opening. It will be the bidder's sole responsibility to see that his/her bid is delivered to the district prior to the time set for opening of bids. Any bid received after the time set for opening the bids will be returned to the bidder unopened and will receive no consideration by the district;~~

~~B. Formal bid tabulations will be presented at the time provided in the bid proposal;~~

~~C. Formal bid awards will be approved by the board after review by the superintendent's administrative contracts committee on the basis of staff recommendation;~~

~~D. Brand names and manufacturers' catalog numbers used in specifications are for the purpose of identification and to establish a standard of quality. Alternate bids may be considered providing the bidder specifies brand and model and furnishes descriptive literature. The acceptance of alternative items will be conditioned on the district's inspection and testing after receipt. If found to be unacceptable, the material will be returned at the seller's expense and the contract canceled;~~

~~E. The district will reserve the right to reject any or all bids, waive any formalities and cancel the solicitation;~~

~~F. On construction projects, the bidder will agree to comply with prevailing wage and affirmative action requirements and provide a performance bond as required;~~

~~G. The superintendent or designee may solicit bids, proposals or quotations by telephone and/or written format for furniture, equipment and supplies which have an estimated cost from Forty Thousand Dollars ($40,000) up to Seventy-Five Thousand Dollars ($75,000.00). At least three telephone or written bids will be secured prior to the date established by the superintendent or designee. All telephone quotations must be confirmed in writing within seven days in order to constitute a valid quotation; and~~

~~H. For public works projects estimated to cost less than One Hundred Thousand Dollars ($100,000.00) and more than Ten Thousand Dollars ($10,000), the superintendent or designee may solicit bids by electronic means and/or written quotations from contractors. The district will not break a project into units or phases in order to come within the scope of bidding requirements.~~

~~I. For public works estimated to cost less than Ten Thousand Dollars ($10,000.00), the district may~~

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~~award with no competitive bid based on the knowledge and experience of district staff and the experience of a contractor. There may be times when evidence of competition is necessary below the Ten Thousand Dollar ($10,000) limit, based on the type of work to be completed and the familiarity of district staff.~~

~~J. The following steps will be employed to engage a contractor:~~

~~1. Written specifications will be prepared which describe the work to be completed and the materials to be used. Completion date; contractor's assurances (prevailing wages, fair employment, etc.); bid and performance bond requirements; opportunity to visit the work site; closing date; and bid form may be provided. Detailed plans and specifications need not be included in the invitation;~~

~~2. After the closing time, bids will be opened, recorded and made available for inspection or telephone inquiry; and~~

~~3. The superintendent or designee will award the contract to the lowest responsible bidder. The district will post a list of contracts awarded once every two months, including the name of the contractor or vendor, amount of the contract, a brief description of the work done or items purchased, and the date awarded. The notification must also include the location where quotations for the contracts listed are available for public inspection.~~

~~K. The district may reject any and all bids and make further calls for bids in the same manner as the original call, as described in RCW 39.26.160.~~

~~L. The following factors will be considered in determining the lowest responsible bidder:~~

~~1. The ability, capacity and skill of bidder to perform the work required;~~

~~2. The character, integrity, reputation, judgment, experience, and efficiency of the bidder;~~

~~3. The ability of the low bidder to perform the work in the time specified;~~

~~4. The quality of performance of previous contracts or services;~~

~~5. The previous and existing compliance of the bidder with laws relating to public works; and~~

~~6. Such other information related to the performance of the contract as the superintendent deems advisable.~~

~~M. An acceptable bid or offer and a district purchase order will constitute the only contract necessary for the purchase of supplies, equipment, and minor repairs of construction projects, except that the successful bidder will meet all conditions included in the specifications.~~

~~N. Formal written contracts will be prepared for all major construction and repair projects. After a majority of the board votes to approve a contract, the board president/chair and/or secretary sign the contract on behalf of the board and record the action in the minutes. All contracts will provide that, in the event that the district files suit to enforce the terms of the contract, the venue will be the county where the district is located. All contracts will also provide that, if the district is successful in the suit, the court may order reimbursement of the district's attorney fees and court costs as the court deems reasonable. Any contract for services with an entity or individual shall include a provision requiring the contractor to prohibit any of its employees who has pled guilty to or been convicted of any felony crime specified under RCW 28A.400.322 from having contact with children at a public school during the course of his or her employment. The contract will also provide that failure to comply with this requirement is grounds for immediate termination of the contract.~~

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APPROVED:

~~Dr. Steven Webb~~Jeff Snell, Superintendent Vancouver Public Schools	Date

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